



U.S. Department
of Transportation

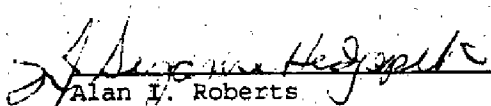
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10436 (EXTENSION)
FIRST REVISION December 19, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10436 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan J. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 7 1994
(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Sandoz Chemicals Corp.
Charlotte, NC

October 6, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



U.S. Department
of Transportation

Research and
Special Programs
Administration

JUL 20 1998

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10436
(THIRD REVISION)

EXPIRATION DATE: June 30, 2000

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. **GRANTEE:** Clariant Corporation
Charlotte, NC
2. **PURPOSE AND LIMITATION:** This exemption authorizes the transportation in commerce of chlorodinitrobenzenes in insulated DOT Specification MC-307 cargo tanks. This exemption provides no relief from any regulation other than as specifically stated herein.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR 173.242(b) in that the material is transported above its melting point.
5. **BASIS:** This exemption is based on the application of Clariant Corporation dated June 11, 1998, submitted in accordance with 49 CFR 107.109.
6. **HAZARDOUS MATERIALS (49 CFR 172.101):**

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Chlorodinitrobenzenes maintained at a temperature above 45°C (113 °F)	6.1	UN1577	II

7. **SAFETY CONTROL MEASURES:**
 - a. **PACKAGING** - Packaging prescribed is a DOT Specification MC-307 stainless steel cargo tank which is insulated and equipped with heating coils. Minimum outage must be as specified in 49 CFR 173.32b(a).

b. TESTING - Each cargo tank must be tested and inspected as required in 49 CFR 180.407^e as specified for MC-307 cargo tank motor vehicles. Additionally, heating coils must be tested as specified in 49 CFR 180.407(g)(4).

8. SPECIAL PROVISIONS:

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

c. Marking - The cargo tank must be plainly marked on the right side near the front, in letters at least two inches high on a contrasting background, "DOT-E 10436".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS:

a. A copy of this exemption must be carried aboard the motor vehicle used to transport packages covered by this exemption.

b. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

c. Motor carriers operating under the terms of this exemption must have a "Satisfactory" or "Conditional" safety rating issued by the Office of Motor Carrier Field Operations, Federal Highway Administration in accordance with 49 CFR Part 385.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

o Registration required by 49 CFR 107.601 et seq., when applicable.

JUL 21 1998

Continuation of DOT-E 10436 (3rd Rev.)

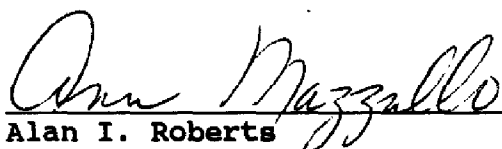
Page 3

Each "Hazmat employee", as defined in 49 CFR 171.8 who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. **REPORTING REQUIREMENTS:** The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

7/21/98
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office.. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046

Dist: FHWA
PO: sln